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September 25, 2026

Via U.S. Mail and Via Email: bill_y_lu@yahoo.com & jie_h_hu@yahoo.com

Yibiao Lu
Jie Hu
17756 George Moran Dr.
Eden Prairie, MN 55347

Re: ***Yibiao Lu and Jie Hu v. Fire Insurance Exchange***
Court File No.: 27-CV-26-11606
Our File No.: 5490

Dear Yibiao Lu and Jie Hu:

This correspondence is in response to your “meet and confer” letter, in which you state that you write to confer regarding six “open items” under the September 8, 2026, Scheduling Order. In your email transmitting the “meet and confer” letter, you request responses to the various items therein on two separate dates.

First, as previously explained, we will not respond to arbitrary deadlines set by you in this case. We will follow the deadlines set forth by the Scheduling Order, Minnesota Rules of Civil Procedure, Minnesota General Rules of Practice, and any other applicable statute or law. Further, we operate as professionals and provide responses to any correspondence which requires a response as soon as we are able.

Second, several of the items which you request information/clarification from our office relate to questions regarding the deadlines in the Scheduling Order and related legal implications. If you have questions about the Scheduling Order or its implications, you should address the same with the court or retain an attorney to give you legal advice. We are unable to provide you with legal analysis or assessment regarding the Scheduling Order and its implications. For example, with Item No. 1, you appear to have questions about the March 15, 2027, discovery deadline. You state that with the deadlines as written, neither party could depose the other’s expert. Please address your concerns

about the Scheduling Order with the Court; review Minn. R. Civ. P. 26.01(b) and 26.02(e); and/or consult with an attorney. Expert depositions are not allowed in Minnesota state court absent agreement or order of the court. Any agreement concerning expert depositions is premature at this time. Item 2 also seeks legal interpretation of the Scheduling Order. If you have concerns with Scheduling Order deadlines and how they correspond with motion practice, for example, you should address those with the court or seek legal counsel. Having reviewed the Court's Scheduling Order, we do not have concerns with the timing of the deadlines therein and will follow the Scheduling Order. We have reached out to our client about Item number 3 and will report back.

In regard to Item 4, we will follow Minn. R. Civ. P. 26.02(f), which addresses the requirement of a privilege log for withheld information on the basis of privilege or trial preparation materials. 26.02(f)(2) requires claw-back but it also allows the party receiving privileged or trial preparation materials in error to promptly present the information to the court under seal for a determination of the claim. We will follow the Rule but will not waive our client's right to potentially request the court to make a determination on any potential claim.

For Item 5 you state that Defendant's Answer includes the affirmative defense alleging "a lack of jurisdiction over Defendant FIE." We included that affirmative defense so as not to waive it. We acknowledge that Fire Insurance Exchange is a proper party to this lawsuit.

Item 6. You ask us to confirm that we will engage in notifying the Court of the agreed upon neutral as required by the Scheduling Order. We will follow the Scheduling Order and moving forward, we will not continue to "confirm" that we will follow the Scheduling Order. We would suggest Roger Kramer or Charles Noel as mediators.

Finally, on a separate note, you recently served Plaintiffs' First Set of Requests for Admission to Defendant Fire Insurance Exchange ("RFA"), which is seventeen (17) pages and includes 141 Requests for Admission. We have reviewed the RFAs. It is our position that many of the RFAs are not relevant to the appraisal award at issue in this case; that the RFAs are not proportional to the needs of the case; and the number and nature of the RFAs are oppressive and create an undue burden to our client. We refer you to Minn. R. Civ. P. 1 and 26.02 regarding the scope of discovery and proportionality requirements. We will agree to answer 25 RFAs and hereby request that you let us know which RFAs you wish for us to answer. Otherwise, we will select and answer 25 on our own and we will object to the remaining 116 RFAs for the reasons outlined herein.

Please let us know if you agree to either of the mediators we suggested or provide us with your proposed mediators.

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Sincerely,

/s/ Mary J. Baskfield

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